Court describes the exception as applying in "extreme cases" to sentencing errors that are "egregious" and "obvious" and that "undermine public confidence in the judiciary." *Ante*, at 727–728. I appreciate JUSTICE GORSUCH's thoughtful concurrence. But I respectfully disagree with his understanding of the miscarriage-of-justice exception. As I read it, his concurring opinion would set a lower bar for the miscarriage-of-justice exception than the Court's opinion does. In my view, therefore, the concurrence may not be entirely consistent with the Court's opinion. In any event, the Court's opinion of course speaks for itself.

JUSTICE BARRETT, concurring.

JUSTICE THOMAS raises some thoughtful points about the Supreme Court's supervisory power. See *post*, at 761–763 (dissenting opinion). Today's opinion nowhere mentions this power, however, and I do not understand the Court to implicitly assert it.

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Like JUSTICE THOMAS, I am skeptical that the Supreme Court possesses an inherent, supervisory authority over inferior federal courts. See A. Barrett, The Supervisory Power of the Supreme Court, 106 Colum. L. Rev. 324 (2006). At the same time, I have distinguished exercises of such authority from the development of procedural common law. See A. Barrett, Procedural Common Law, 94 Va. L. Rev. 813, 883–884 (2008). The former concerns narrow, discretionary rules; the latter involves doctrines, like preclusion and abstention, which are "settled by tradition or emergent consensus." *Id.*, at 884.

In my view, today's decision rests on longstanding waiver principles and thus falls in the latter category. See *ante*, at 725 (majority opinion) (comparing appeal waivers to "waivers of other rights held by criminal defendants"). It is well established that a defendant may "intentional[ly] relinquis[h] or abando[n] . . . a known right." *Johnson* v. *Zerbst*, 304 U. S. 458, 464 (1938); see *Shutte* v. *Thompson*, 15 Wall. 151,

159 (1873) ("[A] court whose province it is to administer justice, will take care that on the trial of every cause neither party shall reap any advantage from his own fraud"). All the same, the Court and other authorities have long recognized that a court should not enforce a waiver when doing so would "irreparably discredi[t] the federal courts." *United States* v. *Mezzanatto*, 513 U. S. 196, 204 (1995) (internal quotation marks omitted); see 1 J. Bishop, Commentaries on the Law of Criminal Procedure § 118, p. 71 (2d ed. 1872) ("[T]hough the doctrine that a party may waive a right which the law gives him seems to be universal, still it is not so in its practical workings"); R. Bowers, Treatise on the Law of Waiver 390 (1914) (explaining that there are some rights that a criminal defendant "cannot be deprived of even with his own consent"). These established waiver principles do not originate from the Court's supervisory power. Rather, they belong to the body of procedural common law doctrines that courts have long developed. See Barrett, 94 Va. L. Rev., at 884.

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The Court's decision recognizes these established principles and rightly endorses the "emerging consensus" that they should inform the enforceability of appeal waivers. *Id.*, at 886; see *ante*, at 720–721, and n. 1, 727. When the Government moves to enforce an appeal waiver, it is asking the court of appeals to hold a defendant to a position that he knowingly and voluntarily took below. In the mine run of cases, that waiver should be enforced: The right to appeal, like most other rights, can be relinquished, either when the appeal is ripe (by declining to file an appeal) or prospectively (by signing an appeal waiver). But as the Court explains, there are some extreme cases where enforcing an appeal waiver would paper over an "egregious" and "obvious" error that would "bring the judicial system into disrepute." *Ante*, at 727. In those rare circumstances, the appellate court should decline to enforce the waiver so that it may correct the error.

JUSTICE THOMAS, dissenting.

Munson Hunter deceived others to make himself nearly half-a-million dollars. The Government charged him with 10 counts of fraud. If a jury had convicted him of all 10 counts, Hunter could have received a 300-year sentence. Instead, Hunter knowingly and voluntarily made an agreement with the Government. Under the agreement, the Government would dismiss nine counts. In exchange, Hunter would plead guilty to the remaining one and waive his right to appeal his sentence unless it exceeded the statutory maximum—a 30-year prison term followed by up to 5 years of supervised release. Thanks to the agreement, Hunter received a 51-month prison term, followed by three years of supervised release, less than 2% of the prison time to which the indictment exposed him. Now, Hunter wants to keep his reduced sentence but take back the appeal waiver, and the Court holds that he may be able to do so.

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I see no basis for excusing Hunter from his appeal waiver. Defendants could not appeal federal criminal sentences at all for more than 100 years after the founding; only then did Congress create the statutory right to do so. "Like many constitutional and statutory rights, the right to appeal can be waived by the defendant, and once that choice is finally made, the defendant is bound by the decision." *Garza* v. *Idaho*, 586 U. S. 232, 257 (2019) (THOMAS, J., dissenting). The Court today creates a "miscarriage-of-justice" exception to this rule. But, it cannot identify any source of law for its exception. Neither the contract-law principles that Hunter invoked nor this Court's supposed "supervisory power" give it the authority to override Hunter's appeal waiver.

Without any source of law to justify its decision, the Court appears to rest on its policy concern that holding defendants to their waivers may sometimes lead to unfair results or make federal courts look bad. But, policy concerns are not rules of decision in courts of law. Because I would decide